

**PASSED**

**CHICKASAW TRIBAL LEGISLATURE**  
**Permanent Resolution Number 38-023**  
**Amendments to Title 5 of the Chickasaw Nation Code**  
**(Statute of Limitations)**

**WHEREAS**, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

**WHEREAS**, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

**WHEREAS**, the Chickasaw Tribal Legislature has previously enacted rules and regulations for commencement of prosecution, and

**WHEREAS**, the Tribal Legislature desires to amend those rules and regulations.

**NOW, THEREFORE, BE IT RESOLVED**, that Chickasaw Tribal Legislature hereby approves and adopts the following amendments to Title 5, Chapter 3, Section 5-301.11, of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red, deletions are stricken through):

**SECTION 5-301.10**

**STATUTE OF LIMITATIONS.**

\* \* \*

D. A prosecution may be brought at any time for Homicide in the First Degree, Homicide in the Second Degree, Rape in the First Degree, Rape in the Second Degree, Kidnapping, or Treason.

E. Whenever any criminal offense is dismissed by a separate sovereign because that sovereign did not have jurisdiction to prosecute, and the dismissal occurs after the expiration of the period prescribed by the applicable Chickasaw Nation statute of limitations, a complaint charging the criminal offense may be filed in the Chickasaw Nation within one hundred eighty (180) days of the later of two events: 1) the date of the dismissal of the charge; or 2) if appealed, the date the separate sovereign's appellate court enters a final decision ordering the dismissal. This section does not permit the filing of a new complaint charging a criminal offense where the reason for the dismissal was the failure of the separate sovereign to file the complaint within the period prescribed by its own applicable statute of limitations.

F. Whenever any criminal offense was prosecuted by a separate sovereign, for which a defendant was convicted, sentenced, and punished under the laws of the separate sovereign, and the convictions and sentences were later vacated for lack of jurisdiction after the expiration

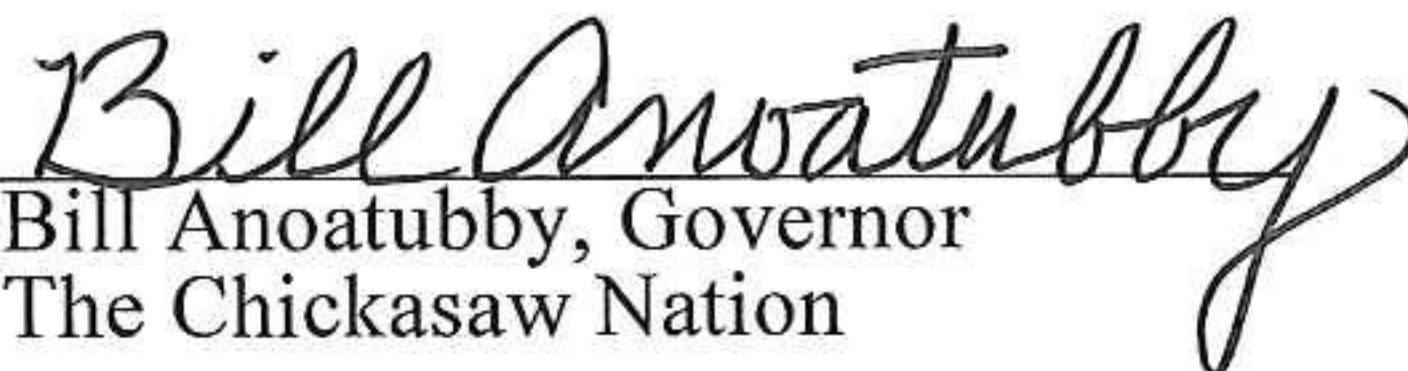


of the period prescribed by the applicable Chickasaw Nation statutes of limitations, a complaint charging the criminal offense may be filed in the Chickasaw Nation within one hundred eighty (180) days of the final order vacating the Judgment and Sentence. This section does not permit the filing of a new complaint charging a criminal offense where the reason for the dismissal was the failure of the separate sovereign to file the information within the period prescribed by its own applicable statute of limitations.

Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on May 21, 2021, by a vote of 12 ayes, 0 nays, and 0 abstentions

  
Chairperson  
Chickasaw Tribal Legislature

  
Secretary  
Chickasaw Tribal Legislature

Concur:  Date: MAY 24 2021  
Bill Anoatubby, Governor  
The Chickasaw Nation



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**Explanation:**

This resolution amends one section in Title 5. The amendments remove the statute of limitations for specific offenses. The amendments also allow for prosecution of persons if the statute of limitations has run, and charges are dropped by a separate sovereign for lack of jurisdiction or if the conviction was vacated for lack of jurisdiction.

**Presented by:**

Legislative Committee,  
Chickasaw Tribal Legislature